

Gaurav Gupta v. UPERC

High Court of Judicature at Allahabad · Division Bench · 21 September 2010 · Writ-C No. 57869 of 2010 · **Meter to be tested as per Supply Code and Amrawati Devi.**

HEADNOTE

On a consent disposal, where the distribution licensee did not dispute that a meter found tampered on inspection should be tested as held in Smt. Amrawati Devi, the High Court directed that the petitioner's meter be got tested in accordance with the Electricity Supply Code as interpreted in that Division Bench decision.

FACTUAL SUMMARY

On 11 December 2009 an inspection by the electricity company found the sealed meter at Gaurav Gupta's premises tampered. The company said the meter was not working properly; Gupta said it should be tested in accordance with law. He approached the Allahabad High Court against UPERC and Kanpur Electricity Supply Company, relying on the Division Bench decision in Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. Counsel for the supply company did not dispute that ratio and stated that the meter would be tested as that decision required.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::unspecified

meter testing after alleged tampering

HOLDING

With the parties' consent, the writ is disposed of directing that respondents 2 and 3 shall get the petitioner's meter tested in accordance with the Electricity Supply Code as interpreted in Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. ¶ 1

FLAG Order cites the Electricity Supply Code generally as interpreted in Amrawati Devi; no clause number.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE METER WAS IN FACT TAMPERED, OR ANY CONSEQUENTIAL ASSESSMENT IS PAYABLE

Consent order confined to testing; no finding on theft, working of the meter, or billing. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. 2009 (1) ADJ 430 (DB)			1	Referred